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CASE #	CASE NAME	HEARING NAME
CVRI2601657	BRIGGS vs ZAKHIREH, M.D.	MOTION TO BE RELIEVED AS COUNSEL FOR CATHY BRIGGS

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel Pamela S. Traut is relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order being served upon the client.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2500492	KRAIN vs MOREHEAD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Plaintiff asks the Court to take judicial notice of the docket and various filings in this action. It is unnecessary to take judicial notice of documents already filed in the same action. (Cf. *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11.) Thus, the request is denied.

Evidentiary Objections

Plaintiff objects to ¶¶ 2-10 of the Decl. of Raquel Hernandez [“Hernandez Decl.”], and Exs. A-D attached thereto on the grounds that they lack foundation and personal knowledge, are speculative, and are hearsay. In the Hernandez Decl., she states that in the course of her employment with American Express, she “has access to and is familiar with the manner in which American Express creates, maintains, and stores account records for its cardmembers;” the records are kept in the ordinary course of business and were created at or near the time of the event they describe; the records are created by and/or based upon information from a person with knowledge of the matters set forth in the records. (Hernandez Decl. ¶ 2.) She then states that, as reflected in American Express’ records: Plaintiff has maintained a Gold Card since January 29, 2004; at Plaintiff’s request, his account was transferred to a Premier Rewards Gold Card in August 2010, and a Cardmember Agreement for that card containing an arbitration provision was mailed to Plaintiff on August 5, 2010; a revised Cardmember Agreement for that card, also containing an arbitration provision, was mailed to Plaintiff on January 19, 2011; and Plaintiff continued to use his card after receiving the Cardmember Agreements. (Hernandez Decl. at ¶¶ 2-9.)

In support of his objections, Plaintiff relies entirely upon the cases of *Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13 and *Chambers v. Crown Asset Management, LLC* (2021) 71 Cal.App.5th 583. Plaintiff’s reliance on these cases is misplaced.

In *Fleming, supra*, the court affirmed the trial court's denial of a motion to compel arbitration finding the bank failed to establish an arbitration agreement existed. (*Fleming, supra*, 88 Cal.App.5th at 24-25.) The court noted that the declaration submitted in support of the motion stated that the plaintiff electronically applied for a credit card, but there was no reference to an arbitration agreement in the electronic application, and while the plaintiff was provided with account statements, none of the account statements referenced an arbitration agreement. (*Id.* at 17.) Because the bank failed to submit any document referencing an arbitration agreement, the court found that it failed to meet its burden. That is not the case here, as American Express provided two Cardholder Agreements that specifically state that claims related to the credit card are subject to arbitration. (Hernandez Decl., Exs, A, B.) Thus, the court's decision in *Fleming* has no relevance here.

In *Chambers, supra*, the court also affirmed the trial court's denial of a motion to arbitrate, finding that the supporting declaration was insufficient to demonstrate that the arbitration agreement was mailed to the plaintiff. (*Chambers, supra*, 71 Cal.App.5th at 589, 602.) There, the court found that the creditor's employee statement in her affidavit that she regularly reviewed and analyzed account records and transactions histories did not show that creditor's account records and transaction histories were made in the regular course of business, as required for records to qualify for the business records exception to hearsay and be admissible under the secondary evidence rule to demonstrate that borrower was mailed an agreement containing an arbitration clause so that she could be compelled to arbitrate her claims. The court also noted that the employee did not say anything about the preparation of the records or the specific records she relied upon to state that borrower had been mailed the account agreement. (*Id.* at 598-600.) The court also found that the creditor's supporting declaration indicating that the creditor "maintains a record of any correspondence it receives from its cardholders, including requests to reject or opt out of an arbitration provision" only discussed the practice of maintaining a record of what was received, did not mention any practice of maintaining a record of what was sent and did not say what the creditor sends to its cardholders in the regular course of business. (*Id.* at 599-600.) Based on these failures, the court found the creditor did not establish an arbitration agreement existed.

However, in the present case, as noted above, Hernandez indicates the Cardmember Agreement is sent to cardholders in the ordinary course of business, American Express maintains a record of what is sent, and those records reflect that Plaintiff used her card after receipt of the original Cardmember Agreement and updated Cardmember Agreement. (Hernandez Decl. at ¶¶ 2-9.) Thus, Hernandez establishes that her testimony is based upon records that qualify for the business records exception to hearsay and is admissible under the secondary evidence rule to demonstrate that Plaintiff was mailed the Cardmember Agreement and updated Cardmember Agreement. **As such, Plaintiff's evidentiary objections are overruled.**

Plaintiff also objects to the Decl. of Debra Reed filed with American Express' Reply. Plaintiff is correct that "[t]he general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316; *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453 ["Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument."].) However, the evidence presented in the Reed Decl. goes directly to an issue raised by Plaintiff in his opposition – that American Express waived its right to arbitration by participating in the lawsuit. This is not improper. **Thus, this objection is also overruled.**

Merits

Arbitration is a matter of contract. (C.C.P. § 1281, 1281.2; *Unimart v. Superior Court* (1969) 1 Cal.App.3d 1039, 1045). A party to the arbitration agreement may seek a court order compelling the parties to arbitrate the dispute covered by the agreement. (C.C.P. § 1281.2.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC Rule 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218–19.) The burden then shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Condee, supra*, 88 Cal.App.4th at 218–19.)

There is a strong public policy in favor of arbitration agreements." (*Blake v. Ecker* (2001) 93 Cal.App.4th 728, 741.) Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for rescission of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (C.C.P. § 1281.2.)

"In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability ... Parties may submit declarations when factual issues are tendered with a motion to compel arbitration." (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, "the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

An Arbitration Agreement Exists

Both the Federal Arbitration Act and the California Arbitration Act require the existence of a valid arbitration agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and Code Civ. Proc., §1281.2) The party seeking to compel arbitration has the burden of proving the existence of such an agreement by a preponderance of the evidence. (*Ruiz v. Moss Bros. Auto Group* (2014) 232 Cal.App.4th 836, 842.)

Here, American Express attaches a copy of the arbitration agreement to its motion and properly authenticates the agreement. (See, Hernandez Decl. at ¶¶ 2-9, Exs. A, B.) Thus, it met its burden of establishing an arbitration agreement exists. (See, *Condee, supra*, 88 Cal.App.4th at 218–19.) The burden then shifts to Plaintiff to offer admissible evidence to challenge the authenticity of the agreements. (*Ivere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) Plaintiff does not dispute that an arbitration agreement exists or contend he did not sign it, instead only raising objections (see above) to the Hernandez Declaration. As Plaintiff presents no evidence to challenge the authenticity of the arbitration agreement, **Defendant has established an arbitration agreement between the parties exists.**

Waiver

Plaintiff contends American Express waived its right to arbitration. “There is no single test under state or federal law that delineates the nature of the conduct that will constitute a waiver of arbitration. (*St. Agnes Medical Center v. PacificCare of California* (2003) 31 Cal.4th 1187, 1196.) “In assessing waiver of a contractual right to arbitration, the court may consider the following factors when determining waiver: (1) whether the party's actions are inconsistent with the right to arbitrate; (2) whether the litigation machinery has been substantially invoked and the parties were well into preparation of a lawsuit before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place; and (6) whether the delay affected, misled, or prejudiced the opposing party....” (*Desert Regional Medical Center, supra*, 87 Cal.App.5th at 315, quoting *St. Agnes, supra*, 31 Cal.4th at 1196 [internal quotations and citations omitted].) The sixth factor, prejudice to the opposing party, has been abrogated by *Morgan* and *Davis*, at least where the FAA applies. (*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, n.5; *Morgan v. Sundance, Inc.* (2022) 142 S.Ct. 1708.)

“California courts thus have found a waiver of the right to arbitration in a variety of contexts, ranging from situations in which the party seeking to compel arbitration has previously taken steps inconsistent with an intent to invoke arbitration ... to instances in which the petitioning party has unreasonably delayed in undertaking the procedure.” (*Fleming Distribution Co. v. Younan* (2020) 49 Cal.App.5th 73, 80 [internal quotations

and citations omitted].) “To properly invoke the right to arbitrate, a party must (1) timely raise the defense and take affirmative steps to implement the process, and (2) participate in conduct consistent with the intent to arbitrate the dispute. Both of these actions must be taken to secure for the participants the benefits of arbitration.” (*Fleming, supra*, 49 Cal.App.5th at 80-81 [internal citations omitted].) Further, as noted in *Fleming*, “[a]lthough participating in the litigation of an arbitrable claim does not by itself waive a party’s right to later seek to arbitrate the matter, at some point continued litigation of the dispute justifies a finding of waiver....” (*Fleming, supra*, 49 Cal.App.5th at 80 [citations omitted].)

The determination of waiver is generally a question of fact, and “the trial court’s finding, if supported by sufficient evidence, is binding on the appellate court.” (*St. Agnes Medical Center v. PacifiCare of California* (2003) 31 Cal.4th 1187, 1196.) “When, however, the facts are undisputed and only one inference may reasonably be drawn, the issue is one of law and the reviewing court is not bound by the trial court’s ruling.” (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 319; *St. Agnes, supra*, 31 Cal.4th at p.1196.)

Plaintiff argues American Express waived its right to arbitration based on the following: it filed an Answer on April 30, 2026, raising arbitration as a defense; it did not request arbitration in its CMC statement filed on April 21, 2026; it “participated” in discovery by being served with discovery and responses from other parties; it requested an extension to respond to discovery; and it attended one deposition. (Opposition, pp. 3:12-5:15; Decl. of Marsha Smith at ¶¶ 2-8.) American Express filed this motion within two months of filing its Answer and CMC statement, and there is no evidence that it served or substantively responded to any discovery. (*Ibid.*) Thus, there is no evidence American Express engaged in any conduct inconsistent with its intent to arbitrate the dispute. **Accordingly, it did not have its right to arbitration waived.**

The motion to arbitrate is granted. All proceedings are taken off calendar pending completion of arbitration, and this civil case is stayed pending arbitration. A Hearing re: completion of arbitration is set for May 7, 2027, at 8:30 a.m., in Department 5.